

24VECV05351 24VECV05351

County: los-angeles

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Tentative Ruling

Zargaryan v. Sargsyan, Case no. 24VECV05351

Hearing date September 22, 2026

Plaintiff

Zargaryan's Motion to Set Aside Dismissal

Plaintiff

Zargaryan sues defendant Sargsyan for defamation. Defendant moved for sanctions pursuant to Code Civ. Proc. §128.5, arguing she is not a proper defendant. The court granted the unopposed motion on 7/7/26, dismissing this action with prejudice and awarding \$15,073.10 in attorney's fees and \$595.52 in costs against plaintiff and counsel. See 7/7/26 Min. Order. Plaintiff moves to set aside the dismissal and sanctions order, asserting attorney neglect pursuant to Code Civ. Proc. §473(b). Defendant opposes.

"Notwithstanding

any other provision of this chapter, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any... resulting default judgment or dismissal entered against his or her client..." Code Civ. Proc. §473(b).

Plaintiff

asserts counsel received notice of the motion for sanctions but failed to

calendar the opposition deadline or hearing date, resulting in failure to oppose the motion or appear at the hearing. Decl. Hasic, para. 2. Plaintiff argues relief from dismissal is mandatory where counsel attests to their mistake.

Defendant

argues relief from a motion for sanctions is not proper under Code Civ. Proc. §473(b), citing *English v. IKON Bus. Sols., Inc.* (2001) 94 Cal.App.4th 130, 133 for the proposition that section 473(b) only applies to defaults and default judgements. *English* concerned a plaintiff who sought relief from a motion for summary judgment that was granted because plaintiff's counsel failed to oppose. The *English* court ruled against plaintiff on the basis that summary judgment is neither a default judgment nor a dismissal. *Id.* at 148-149.

Per

Rodriguez v. WNT, Inc. (2025) 116 Cal.App.5th 791, 806, a "terminating sanction qualifies as a dismissal under section 473(b)." Further, the court must grant relief from a dismissal under Code Civ. Proc. §473(b) where counsel has attested to their own neglect, "even if the neglect was inexcusable." *Metro. Serv. Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487. As plaintiff's counsel proffered an affidavit attesting to their own neglect, the court must grant relief from the dismissal.

Defendant

argues no relief from the sanctions should be granted. The court granted sanctions on the basis of attorney's fees and costs incurred by defendant in the course of defending this action, on the premise that this action had been dismissed. As the action is again active, there is no basis to award fees or costs at this time. Per Code Civ. Proc. §473(c)(1)(A), the court imposes a \$1,000 penalty on plaintiff's counsel Hasic only for the admitted neglect, payable within 30 days.

GRANTED;

the court's 7/7/26 order dismissing this action and awarding sanctions is set aside. Sanctions payable within 30 days.